BEFORE THE COMMISSIONER OF EDUCATION
STATE OF TEXAS

STEPHEN RAY JORDAN,
Petitioner,

v.

FRISCO INDEPENDENT SCHOOL DISTRICT,
Respondent.

Docket No. _____

PETITION FOR REVIEW

TO THE HONORABLE COMMISSIONER OF EDUCATION:

Petitioner Stephen Ray Jordan files this Petition for Review pursuant to Texas Education Code Section 7.057 and 19 Texas Administrative Code Section 157.1051. Petitioners are aggrieved by actions and decisions of the Frisco Independent School District Board of Trustees, and by the District's failure to act, that violate the school laws of the State of Texas. In support of this Petition, Petitioner states as follows:

I. DESCRIPTION OF THE CHALLENGED RULING, ACTION, OR FAILURE TO ACT

1. Petitioner challenges the Frisco Independent School District's administrative dismissal of his Level III grievance appeal and the District's anticipatory refusal to provide the Board-level review of grievances required by Texas Education Code Chapter 26A and by the District's own Board-adopted grievance policy, FNG(LOCAL).

2. The challenged action is evidenced by a letter dated May 20, 2026 from Shelley Anderson, Complaint Resolution Coordinator, stating that any Level III filing on Petitioner's grievance "will be dismissed," that the Level II decision is "final," and that extracurricular

complaints "cap at Level II" under a District document titled "Administrative Complaints Process."

3. The position communicated in the Anderson letter was reiterated in a May 21, 2026 email from Esther Kolni, FISD General Counsel, citing Texas Education Code Section 26.011 and Frisco ISD Board policy FNG(LEGAL) as authority for the District's refusal to provide Level III board review.

4. Petitioner also challenges, as part of the pattern of conduct culminating in the May 20, 2026 dismissal, the District's preceding violations of Chapter 26A and FNG(LOCAL) during Levels I and II of the underlying grievance proceeding, as described in Paragraphs 18 through 32 below.

II. DATE OF THE CHALLENGED RULING, ACTION, OR FAILURE TO ACT

5. The challenged ruling was first communicated to Petitioner on May 20, 2026, by letter from Shelley Anderson, Complaint Resolution Coordinator, Frisco Independent School District.

6. This Petition is filed within 45 calendar days of May 20, 2026, in compliance with 19 Texas Administrative Code Section 157.1049(a).

III. PRECISE DESCRIPTION OF ACTION REQUESTED OF THE COMMISSIONER

7. Pursuant to 19 Texas Administrative Code Section 157.1073(h)(2), Petitioner respectfully requests that the Commissioner:

(a) REVERSE the District's May 20, 2026 administrative dismissal of Petitioner's Level III grievance appeal as made through unlawful procedure, in violation of statutory provisions, and in excess of the District's statutory authority;

(b) REMAND the matter to the Frisco Independent School District Board of Trustees with instructions to provide the Board-level review required by Texas Education Code Section 26A.001(b)(4) and the meeting and decision required by Section 26A.002(3);

(c) DIRECT that the Board-level review on remand be conducted in compliance with Texas Education Code Section 26A.001(e)(2) and (3), excluding from any reviewing or hearing officer role any person who is the subject of the underlying grievance;

(d) DIRECT that the Board issue a written decision on the merits of the concern raised in the grievance as required by Texas Education Code Section 26A.001(e)(9), notwithstanding any procedural error or the type of relief or redress requested; and

(e) GRANT such other relief as the Commissioner deems just and proper.

8. Petitioner does not request that the Commissioner substitute his judgment for that of the Board of Trustees on the substantive merits of the underlying grievance. Petitioners seek only reversal and remand for the procedural compliance required by statute and by the District's own Board-adopted policy.

IV. STATEMENT OF JURISDICTION AND LEGAL BASIS FOR THE CLAIM

9. The Commissioner of Education has jurisdiction over this matter pursuant to Texas Education Code Section 7.057(a)(2), which authorizes a person aggrieved by actions or decisions of a school district board of trustees that violates the school laws of the State of Texas to appeal in writing to the Commissioner. Section 7.057(f)(2) defines "school laws of this state" as "Title 1 and this title and rules adopted under those titles." The statutes and rules cited in this Petition are within that definition.

10. Jurisdiction is properly invoked under 19 Texas Administrative Code Section 157.1073(b), which provides that the Commissioner has jurisdiction of allegations that a person is aggrieved by the actions or decisions of a school district board of trustees that violate the school laws of the state.

11. This Petition challenges the District's anticipatory refusal to perform mandatory duties under Texas Education Code Chapter 26A and under the District's Board-adopted policy FNG(LOCAL). Under 19 Texas Administrative Code Section 157.1073(c)(1), a petition for review may challenge a "ruling, action, or failure to act." The District's May 20, 2026 affirmative refusal to provide the Board-level review required by statute is both an action and a failure to act and is appealable under Section 7.057.

12. Petitioner has exhausted those administrative remedies the District has made available. The District has affirmatively refused to provide the Level III board review that constitutes the next step in the District's own grievance process and that is required by statute. Exhaustion does not require the pursuit of a remedy the District has affirmatively refused to provide.

13. The District's refusal to provide Board-level review on Petitioner's grievance is itself a board action subject to Commissioner review. Texas Education Code Section 26A.001(d) authorizes the Board to delegate grievance review only to a committee composed solely of members of the Board of Trustees. The Anderson letter and Kolni email were issued by District staff, not by a committee of Board members. Either the staff action is the Board's action by reason of the District's adoption of a policy under which staff administer such dismissals, in which case the District has violated Section 26A.001(d) by delegating to non-Board members; or the staff action is not a Board action, in which case the District has failed to perform the duty

required by Section 26A.001(b)(4) and Section 26A.002(3). In either case, the matter is properly before the Commissioner under Section 7.057.

V. ISSUES PRESERVED FOR REVIEW

Pursuant to 19 Texas Administrative Code Section 157.1051(b), Petitioner raises the following issues for review and preserves each for Commissioner determination:

14. Whether the District violated Texas Education Code Section 26A.001(b)(4) by denying Petitioner the Board-level review of grievances that the statute mandates as a required level of any school district grievance policy.

15. Whether the District violated Texas Education Code Section 26A.001(d) by purporting to delegate the dismissal of Petitioner's Level III appeal to District staff (Shelley Anderson and Esther Kolni), neither of whom is a member of the District's Board of Trustees, and where the statute authorizes delegation only to a committee composed solely of Board members.

16. Whether the District violated Texas Education Code Section 26A.001(e)(2) by assigning Melissa Howard, a named subject of Petitioner's underlying grievance, to serve as the Level I hearing officer over Petitioner's written objection.

17. Whether the District violated Texas Education Code Section 26A.001(e)(3) by failing to provide a higher level of review when the assigned hearing officer was required to recuse herself as a subject of the grievance.

18. Whether the District violated Texas Education Code Section 26A.001(e)(8) by rejecting Petitioner's Level III appeal initially filed by email on May 18, 2026 without

forwarding the misdirected filing to the appropriate administrator and without preserving the original filing date.

19. Whether the District violated Texas Education Code Section 26A.001(e)(9) by issuing a Level II response that addresses Texas Education Code Section 26.0062, a statute concerning classroom instructional plans which Petitioner did not invoke, and that fails to issue a decision on the merits of the concern raised in Petitioner's grievance.

20. Whether the District violated Texas Education Code Section 26A.002(3)(A) by affirmatively communicating, in the May 20, 2026 Anderson letter, that it would not hold the Board meeting on the grievance required to occur not later than 60 calendar days after the date on which the Level II decision was issued.

21. Whether the District violated Texas Education Code Section 26.011(a) by refusing to address a grievance that alleges violation of a board of trustees policy (FNG(LOCAL)) and of provisions of Title 2 of the Texas Education Code, specifically Chapter 26A.

22. Whether the Texas Education Code Section 26.011(b) extracurricular carve-out applies to Petitioner's grievance, where the grievance alleges multiple violations of board policy and Title 2 provisions, each of which independently defeats the carve-out's conditional application.

23. Whether the District violated its own Board-adopted policy FNG(LOCAL), adopted November 17, 2025, by applying a separate document titled "Administrative Complaints Process" to cap extracurricular grievances at Level II, where FNG(LOCAL) enumerates fourteen categories of complaint routed outside the standard three-level process and does not include

extracurricular activities among them, and where FNG(LOCAL) provides an unconditional Level III appeal right to all complaints not enumerated.

24. Whether the District's actions and decisions, taken cumulatively, are arbitrary or capricious, are characterized by abuse of discretion or unwarranted exercise of discretion, and have prejudiced substantial rights of Petitioner within the meaning of 19 Texas Administrative Code Section 157.1073(h)(2).

VI. STATEMENT OF FACTS

The following facts, established by documents in the local record, support the issues preserved above:

25. Petitioner is the parent of a minor child who is a member of Iron Horse Aquatics, a competitive swim program operated by Frisco Independent School District and registered as a member club with USA Swimming through the North Texas Swimming Local Swim Committee.

26. On February 2, 2026, Iron Horse Aquatics coaches Justin Bilgri and Daiki Sato communicated in writing that no swimmer advancements within the program had occurred and that promotions were on hold. Petitioner subsequently determined that an advancement was in fact in process during the period of that communication.

27. On February 26, 2026, Petitioner filed a Level I grievance with Frisco ISD addressing the absence of published advancement criteria within the Iron Horse Aquatics program and related concerns. On the same date, Petitioner filed a parallel ethics complaint with the District through Lighthouse Services, Report Number 9022620263313.

28. On March 5, 2026, a Level I grievance hearing was conducted by Melissa Howard, FISD Swim and Dive Coordinator, despite Petitioner's prior written objection that Coach

Howard was a named subject of the grievance and therefore required to recuse herself under Texas Education Code Section 26A.001(e)(2) and under the District's own Board-adopted policy FNG(LOCAL).

29. On March 24, 2026, the Level I grievance was denied.

30. On March 27, 2026, Coach Howard, in her dual capacity as the named subject of the grievance and the Level I hearing officer, sent Petitioner an email suggesting that Petitioner's family consider "other clubs in the area that may be better suited to your needs."

31. On March 27, 2026, Petitioner filed a Level II appeal by email. On March 30, 2026, the District remanded the matter to Level I, citing FNG(LOCAL) "additional remedies" language.

32. On April 28, 2026, Petitioner filed the Level II appeal anew through the procedure designated by the District. A Level II conference was conducted on May 5, 2026, at the Frisco ISD Athletic Offices.

33. On May 18, 2026, Deidra Rucker, Associate Director of Athletics, issued the District's Level II response. The Level II response addresses Texas Education Code Section 26.0062, a statute concerning the disclosure of instructional plans and course syllabi for credit-bearing classroom courses and concludes that because that statute does not require districts to publish advancement criteria for extracurricular activities, the District has met its obligations. Petitioner did not invoke Section 26.0062 in his grievance. The Level II response does not address the concern raised by Petitioner's grievance.

34. On May 18, 2026, the same day the Level II response issued, Petitioner filed a Level III appeal by email to the District.

35. On May 20, 2026, Shelley Anderson, Complaint Resolution Coordinator, issued a letter stating that the Level II decision is "final," that any Level III filing on Petitioner's grievance "will be dismissed," and that the District applies an "Administrative Complaints Process" under which extracurricular complaints are capped at Level II. The Anderson letter is the action challenged in this Petition.

36. On May 21, 2026, Esther Kolni, FISD General Counsel, sent an email to Petitioner stating that Petitioner had not properly filed a Level III appeal because such appeals must be filed through the District's GovQA portal, and citing Texas Education Code Section 26.011 and FNG(LEGAL) as authority.

37. Petitioner subsequently filed a Level III appeal through the GovQA portal. The District has not, as of the date of this Petition, scheduled the Board meeting required by Texas Education Code Section 26A.002(3)(A), which under that provision must occur not later than 60 calendar days after May 18, 2026, the date of the Level II decision.

38. Frisco ISD Board policy FNG(LOCAL) was adopted by the Board of Trustees on November 17, 2025, and was issued in current form on February 4, 2026. FNG(LOCAL) enumerates fourteen specific categories of complaint routed outside the standard three-level grievance process. Extracurricular activities are not included among the fourteen. FNG(LOCAL) provides at page 7 that, following Level Two, "the complainant may appeal the decision to the Board" and that "the Board or Board committee shall hold a meeting to discuss the complaint no later than 60 calendar days after the date on which the Level Two decision was made." FNG(LOCAL) provides no exception to this provision for extracurricular complaints.

39. Frisco ISD has not produced a Board action authorizing the "Administrative Complaints Process" referenced in the Anderson letter, nor has the District demonstrated that the

document referenced is a Board-adopted policy. On the face of the District's communications, the document appears to be a staff-created administrative procedure, not Board-adopted policy.

VII. REPRESENTATIVES AND CONTACT INFORMATION

40. Petitioner's contact information is as follows:

Stephen Ray Jordan, pro se

13054 Cinderella Ln

Frisco, Texas 75035

Telephone: 972.403.1231

Email: srjordan@gmail.com

Facsimile: None

41. Respondent's contact information, on information and belief, is as follows:

Frisco Independent School District

Attn: Office of the General Counsel (Esther Kolni)

5515 Ohio Drive

Frisco, Texas 75035

Telephone: 469.633.6000

Facsimile: 469.633.6050

Email: kolnie@friscoisd.org

VIII. PRAYER FOR RELIEF

WHEREFORE, Petitioner respectfully prays that the Commissioner of Education:

A. REVERSE the District's May 20, 2026 administrative dismissal of Petitioner's Level III grievance appeal;

B. REMAND the matter to the Frisco Independent School District Board of Trustees with instructions to provide the Board-level review required by Texas Education Code Section 26A.001(b)(4) and to hold the meeting and issue the decision required by Section 26A.002(3);

C. DIRECT that the Board-level review on remand be conducted in compliance with Texas Education Code Section 26A.001(e)(2) and (3), excluding from any reviewing or hearing officer role any person who is the subject of the underlying grievance;

D. DIRECT that the Board issue a written decision on the merits of the concern raised in Petitioner's grievance as required by Texas Education Code Section 26A.001(e)(9), notwithstanding any procedural error or the type of relief or redress requested;

E. AWARD such other relief, including the award of costs as permitted by law, as the Commissioner deems just and proper.

Respectfully submitted,

/s/ Stephen Ray Jordan

_____

Stephen Ray Jordan, Pro Se

13054 Cinderella Ln

Frisco, Texas 75035

Telephone: 972.403.1231

Email : srjordan@gmail.com

Dated: June 15th, 2026

CERTIFICATE OF SERVICE

I hereby certify that on the 15th day of June, 2026, a true and correct copy of the foregoing Petition for Review was served upon Respondent Frisco Independent School District by:

☐ Personal delivery

☐ United States Mail, certified, return receipt requested

X Email transmission to kolnie@friscoisd.org

☐ Other: _____

at the following address:

Frisco Independent School District

Attn: Office of the General Counsel

5515 Ohio Drive

Frisco, Texas 75035

Stephen Ray Jordan, Pro Se